

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: April 21, 2025

Time: 2:00 PM

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1	Jurado v. Greystar Real Estate Partners, LLC, et. al.	Before the court is an unopposed Motion for Leave to File a Second Amended Complaint ("SAC") by plaintiffs Cathleen Jurado and Brittany Jurado. The motion will be GRANTED, subject to plaintiffs establishing proof of service of the motion. California Rules of Court, Rule 3.1324 sets forth the requirements for amending a complaint. The court finds that the motion generally complies with Rule 3.1324. A copy of the proposed SAC is attached as Exhibit A to Richie's declaration. There is a supporting declaration which states that as a result of the pre-demurrer meet and confer with counsel for Greystar, the plaintiff has opted to delete the two causes of action and that this modification was made in the SAC. Although plaintiffs also state that additional facts are being added, counsel represents that the additional facts are not substantive. (Richie Decl. ¶10) However, there is no proof of service attached to the motion showing that required notice was given to the two defendants, Greystar Real Estate Partners, LLC and Ocean Breeze Apartments Associates, LP. If counsel submits proof of service of the motion at or prior to the hearing of this matter, the motion will be GRANTED. If there is no proof of service, the motion will be DENIED.

		Also on calendar is a Case Management Conference. The parties should be prepared to discuss case status, status of the parties and scheduling a trial. Counsel for plaintiffs is to give notice of this ruling.
2	Ameris Bank v. Physi-Khul Therapy LLC	The motions to be relieved as counsel of record for defendants Physi-Khul Therapy LLC and Alex John Kuhlman (collectively, "Defendants") filed by attorney Jeffrey P. Boykin are CONTINUED TO JUNE 2, 2025, AT 2:00 P.M. IN DEPARTMENT N17. Although there appears to be good cause to grant the relief requested on the merits, there is no proof of service filed for these motions. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (C.R.C. 3.1362(d).) Although counsel's declaration states that Defendants were served by mail at their last known address, the statements in counsel's declaration are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013a.) No oppositions were filed. It is thus unclear if Defendants and Plaintiff's counsel received proper notice of these motions. The motions are therefore continued as stated above. Moving counsel is ordered to file a proof of service showing Defendants and all parties were timely served with the notice of motion and motion, the declaration, and the proposed order. Said proof of service is to be filed at least 5 court days prior to the hearing. Moving counsel is ordered to give notice of this ruling.
3	Miltimore v. DCS Management LLC	O/C
4	Gee vs. Gee	Plaintiff Tamara Gee, as Executor of the Estate of Etta Wong's ("Plaintiff") Motions for Preliminary Injunctions ("Motions") against defendants Daniel Gee ("Daniel" individually) and Sagebrush Investments ("SI" individually; "Defendants" together with Daniel) are GRANTED. The court finds a preliminary injunction ("PI") should be issued in this instance. The burden is on <i>the moving party</i> to show all elements necessary to support issuance of a preliminary injunction. [Emphasis added.] (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App. 4th 1452, 1481.) The moving party has the burden to show that it is reasonably probable it will prevail on the merits. (<i>San Francisco Newspaper Printing Co. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442; Weil & Brown, ¶ 9:632.1.) Additionally, "[i]n deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: [1] the likelihood the moving party ultimately will prevail on the merits, and [2] the relative interim harm to the parties from the issuance or nonissuance of the injunction." (<i>Whyte v. Schlage Lock Co.</i> (2002) 101 Cal.App.4th 1443, 1449–1450.)